

Amendment No. 1 to HB1785

White
Signature of Sponsor

AMEND Senate Bill No. 1822

House Bill No. 1785*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 50, Part 8, is amended by adding the following as a new section:

(a)

(1) If a public school established under the jurisdiction of an LEA to serve students in any of the grades six through twelve (6-12) is a member of an organization or an association that regulates interscholastic athletic competition, then the LEA shall permit participation in interscholastic athletics offered at the public school by a middle or high school student who:

(A) Is enrolled in a private school that is not a member of the organization or association and that serves fewer than two hundred (200) students in grades six through eight (6-8) or fewer than two hundred (200) students in grades nine through twelve (9-12);

(B) Satisfies the eligibility requirements established by the organization or association; and

(C) Resides within the geographic boundaries of the LEA.

(2) A student who meets the requirements of subdivision (a)(1) may only participate in interscholastic athletics at the public middle or high school that the student is zoned to attend, but only in the interscholastic athletic programs that are not offered by the private school in which the student is enrolled.

(b) If a public school established under the jurisdiction of an LEA to serve students in any of the grades six through twelve (6-12) offers its students the opportunity to participate in interscholastic athletic competition at the public school without the school being a member of an organization or an association that regulates interscholastic athletic competition, then the LEA shall permit participation in interscholastic athletics at the public middle or high school by a student who is enrolled in a private school described in subdivision (a)(1)(A) and who is zoned to attend the school. This subsection (b) does not prevent or interfere with the application and enforcement of any eligibility requirements of an organization or association that regulates interscholastic athletic competition as set forth in subsection (a) if the public school at which the student seeks to participate in interscholastic athletics pursuant to this section is a member of such an organization or association.

(c) This section does not guarantee that a middle or high school student who is enrolled in a private school described in subdivision (a)(1)(A) and who is trying out for an interscholastic athletics team at a public school will make the team or supplant the authority of any coaches or other school officials in deciding who makes the team. This section is only intended to guarantee that the private school student is not prohibited from trying out for an interscholastic athletics team at the public school if the student is otherwise eligible to participate under the rules of the organization or association, solely by reason of the student's status as a private school student.

(d) This section does not limit or supplant the authority of any organization or association to determine eligibility and to establish, modify, and enforce its rules and eligibility requirements, including those applicable to private school students.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 school year and each school year thereafter.